

PART V CONCLUSIONS

18. FINDINGS

The Inquiry carried out by the inspectors has covered great detail. It includes events immediately prior to the collision, the collision itself and the search and rescue operation. The inspectors also carried out detailed research into events and actions which took place some years prior to this tragic incident which have a bearing upon it.

It is inevitable in an accident such as this, when one of the main witnesses sadly loses his life, that a certain amount of supposition must be taken into account. However, the supposition followed is based on proven theories and the wide experience of those carrying out the inquiry and investigation. I consider that the findings given in this section of the report are a true reflection of the actual events which occurred on that night.

The investigation followed every possible avenue and the inspectors' findings are consistent with good, unbiased investigatory work. Their findings clearly identify not only the immediate cause of the casualty but a number of factors which were contributory to that immediate cause.

The inspectors' final finding that there was no wilful misconduct in either vessel contributing to the collision, foundering or the loss of life is fully borne out by the preceding sections of this report, and I make no recommendations for any disciplinary action to be taken.

The findings of the inspectors who carried out the Inspector's Inquiry are as follows:-

- 18.1 The loss of the lives of the Skipper and 50 passengers from the MARCHIONESS was a direct result of her foundering, and her foundering was a direct result of collision with mv BOWBELLE.
- 18.2 The collision took place within a few seconds of 0146 hrs BST on 20 August 1989, just above Cannon Street Railway Bridge and near the middle of the river.
- 18.3 The collision occurred because neither vessel observed the other until too late. The salient point which stands out from the evidence is that no one in either vessel was aware of the other's presence until very shortly before the collision. No one on the bridge of BOWBELLE was aware of MARCHIONESS until the collision occurred.

The immediate cause of the casualty was therefore failure of look-out in each vessel.

18.4 The principal contributory factors were that:-

visibility from the wheelhouse of each vessel was seriously restricted;
both vessels were using the middle part of the fairway and the centre arches of the bridges across the river;
clear instructions were not given to the forward look-out in BOWBELLE.

18.5 Further probable contributory factors were:-

the strength of the tide;
the phenomenon of hydro dynamic interaction.

18.6 Further possible contributory factors were:-

insufficiently conspicuous navigation lights on each vessel;
noise from the disco party on board MARCHIONESS;
tiredness of MARCHIONESS's Skipper.

18.7 In each vessel, the restricted visibility was caused by the position and design of the wheelhouse and stemmed from inadequate consideration of the needs of the navigator, at the design stage in BOWBELLE and at the time of conversion in MARCHIONESS.

18.8 Despite the difficulties, it was possible in each vessel for look-out to be maintained if sufficient positive steps were taken. Some steps were taken but they were not sufficient to provide for a fully adequate look-out in either vessel.

18.9 BOWBELLE was using the centre arches because by the standards of the River she is a large ship, and it was normal and proper for her to do so. MARCHIONESS probably used centre arches initially because she was overtaking HURLINGHAM, another passenger launch bound downriver; despite the Collision Regulations, by common practice in the River there was no bar to her using the centre arches if the fairway was clear, as her Skipper evidently thought it was.

18.10 Until shortly before the collision, the two vessels were heading on parallel courses which, had they been continued, would have led to BOWBELLE overtaking MARCHIONESS close but safely. Within about half a minute before impact, however, their courses began to converge. The reasons for this cannot be fully established with certainty, but the convergence was most probably initiated when MARCHIONESS had cleared Southwark Bridge and BOWBELLE was passing through it. At this stage, as BOWBELLE's bow emerged from the bridge, she made a small alteration of course to starboard in order to accommodate a planned alteration to port so as to line up for transit of Cannon Street and London Bridges. The vessels were then about 50 metres apart (BOWBELLE's bow to MARCHIONESS's quarter) and at the same time MARCHIONESS's heading altered to port; this may have been because of the first effects of interaction between the two vessels or possibly as an indirect result of tidal eddy, or a combination of both.

- 18.11 This yaw to port could have been rectified; but it is most probable, taking account of the slight bend in the River, that MARCHIONESS's Skipper saw the centre arches of Cannon Street and London Bridges in line ahead and steadied on the new course to pass through them. It appears clear from the evidence that at this stage he was still unaware of BOWBELLE's presence.
- 18.12 On their now converging courses, the vessels came so close that in MARCHIONESS control was lost due to interaction and the vessel sheared strongly to port across the tide which set her on to BOWBELLE's bow. There was probably an initial relatively light impact on her port quarter, and she pivoted so that she came roughly broadside on to the path of the larger ship. In this position a second, heavy, impact was inevitable, which rolled the launch over on to and beyond her beam ends. As a result she flooded rapidly overall and sank, probably within about a minute of impact.
- 18.13 The alarm was raised immediately by the HURLINGHAM and a Search and Rescue operation was begun at once, and was carried out with commendable efficiency under the direction of Thames Division of the Metropolitan Police. 80 people survived, the majority being picked up by the HURLINGHAM and by Police launches.
- 18.14 When MARCHIONESS was first noticed by the look-out in BOWBELLE he made no report, for his instructions were to report vessels only if he considered that hazard existed and at that stage, even though the vessels were already close, their courses had not begun to converge and therefore no hazard was evident. When he did recognise danger and shouted a warning he was not heard, because of the noise of the disco party in progress on board MARCHIONESS.
- 18.15 It is probable that MARCHIONESS had been seen from BOWBELLE at a relatively early stage but not recognised for what she was, perhaps because of the proliferation of other lights. It is unlikely that this is relevant to the collision as she was probably only visible from the fo'c'sle and the look-out on duty there, in accordance with his instructions referred to in the preceding paragraph, would only have reported her if he had considered that hazard existed. It is possible that BOWBELLE was seen at a distance but not noticed, also because of the background of other lights; and not seen when close at hand because her navigation lights were insufficiently visible, due to their placing and her construction. However, she would have been visible to a careful and searching look. There is no suggestion that either vessel was not showing the lights as required.
- 18.16 Proper information was broadcast by BOWBELLE about her passage downriver, and broadcasts were also made by Woolwich Radio; a total of five broadcasts in all, though only two of them were made while MARCHIONESS was on passage. It is possible that the messages were not heard by MARCHIONESS because of the noise made by the disco party.
- 18.17 It is possible that MARCHIONESS's Skipper was less alert than usual because he had already undertaken one disco cruise that night. His concentration may also have been affected by the noise of the disco.
- 18.18 Both vessels were properly certificated, in sound condition, and manned in accordance with the appropriate requirements. In both vessels the bridge or wheelhouse was properly manned.

18.19 Both vessels were proceeding at a speed which was consistent with the requirements of the Collision Regulations and PLA Bye-laws.

18.20 There was no wilful misconduct in either vessel contributing to the collision, the foundering or the loss of life. In as much as personal fault was responsible for the accident, that fault lies jointly with those in direct charge of the two vessels at the time and with those responsible for both the perpetration and the acceptance of their faulty design. It is neither practicable nor desirable to identify every individual concerned as the faults go back over a period of 25 years.